



CHAPTER cliv.

An Act to extend the borough of Bootle and for other purposes. A.D. 1905.
[4th August 1905.]

WHEREAS the borough of Bootle in the county palatine of Lancaster is a municipal borough and the mayor aldermen and burgesses of the borough of Bootle (in this Act called "the Corporation") acting by the council are the urban sanitary authority for the existing borough:

And whereas the existing borough has a separate commission of the peace and a separate police force and the existing borough is a county borough within the meaning of the Local Government Act 1888:

And whereas the Corporation have adopted the under-mentioned Acts or certain provisions thereof and such adopted enactments are in this Act referred to as "the recited adoptive Acts":—

The Public Libraries Acts 1892 to 1901;

The Baths and Washhouses Acts 1846 to 1899;

The Infectious Disease (Notification) Act 1889;

The Infectious Disease (Prevention) Act 1890 sections 4
5 6 14 15 16 17 18 20 and 21;

The Public Health Acts Amendment Act 1890 Part III.;

The Museums and Gymnasiums Act 1891:

And whereas under the Education Act 1902 the council of the existing borough are the local education authority:

And whereas the unrepealed provisions of the local Acts and Orders confirmed by Parliament mentioned in the First Schedule to this Act are in force in the existing borough:

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And whereas the township of Bootle-cum-Linacre is co-extensive with the existing borough and forms part of the West Derby Poor Law Union and returns six guardians :

And whereas the township of Orrell and Ford is a contributory place in the rural district of Sefton and is subject to the jurisdiction of the rural district council of Sefton and that township is also within the West Derby Poor Law Union and returns to the rural district council one member who is also a guardian :

And whereas the township of Orrell and Ford consists of two detached areas one known as Orrell adjoining the existing borough and the other known as Ford on the northern side of the township of Litherland :

And whereas the township of Orrell and Ford is a parish within the meaning of the Local Government Act 1894 and a rural parish for which a parish council has been established :

And whereas under and by virtue of the Education Act 1902 the township of Orrell and Ford forms part of the area of the county council of Lancaster as the local education authority :

And whereas the township of Orrell and Ford is included in the electoral division of Great Crosby for county council purposes :

And whereas it is expedient that the existing borough should be extended so as to include the detached portion of the township of Orrell and Ford known as Orrell (and in this Act referred to as "the added area") :

And whereas it is expedient to make such other provision as in this Act contained :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the seventh day of December one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in the Bootle Times a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate :

And whereas such resolution was published twice in the said Bootle Times and has received the approval of the Local Government Board: A.D. 1905.

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held on the fourth day of January one thousand nine hundred and five in pursuance of a similar notice being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Bootle Corporation Act 1905. Short title.

2. In this Act unless the context otherwise requires— Interpreta-
tion.

“The existing borough” means the borough of Bootle as it existed immediately prior to the commencement of this Act;

“The borough” means the existing borough as extended by this Act;

“The Corporation” means the mayor aldermen and burgesses of the existing borough or of the borough (as the context may require);

“The county” means the administrative county of Lancaster and “the county council” means the council of that administrative county;

“The rural district” and “the rural council” mean respectively the rural district of Sefton and the rural district council of that district;

“The added area” means the detached portion of the township of Orrell and Ford known as Orrell which is added to the existing borough by this Act;

“The Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;

A.D. 1905.

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

Commence-
ment of Act.

3. This Act shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the ninth day of November one thousand nine hundred and five and that date is in this Act referred to as the commencement of this Act :

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the county in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and five and of the revision of the basis or standard of county rate this Act shall come into operation on its passing :

Provided also that for the purposes of sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 the borough shall be deemed not to have been altered until after the thirty-first day of March one thousand nine hundred and six.

Extension of
borough.

4. The boundary of the existing borough is hereby extended so as to include in addition to the existing borough the detached portion of the township of Orrell and Ford known as Orrell and the said area so added to the existing borough shall for all purposes form part of the borough of Bootle.

Deposit of
map of
extended
borough.

5. A map of the borough as extended by this Act has been signed in triplicate by Sir James Thomas Woodhouse the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (in this Act called “the borough map”) one copy of which has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and one copy with the town clerk at his office and copies thereof certified by the town clerk of the borough shall be sent as soon as may

be to the Local Government Board to the Board of Agriculture and Fisheries and to the Inland Revenue Department. A.D. 1905.

6. Copies of or extracts from the borough map deposited with the town clerk of the borough certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as relates to the boundary of the borough and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from such map certified by the town clerk of the borough to be true on payment of a reasonable fee to be demanded by the Corporation. All fees so received shall be carried to the credit of the borough fund. Copies of map to be evidence.

7. The powers and duties of the justices of the peace appointed for the existing borough of the clerk to such justices and of the police constables and other peace officers of the existing borough shall extend to and apply throughout the borough: Powers and duties of justices &c. extended.

Provided that every person committing an offence punishable on summary conviction in any part of the added area prior to the commencement of this Act shall be tried adjudicated on and dealt with as if this Act had not been passed:

Provided also that every proceeding which prior to the commencement of this Act has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

8.—(1) For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the borough and the town clerk of the existing borough shall be the town clerk of the borough. Parish burgess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the county in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists

A.D. 1905. — and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Act.

(3) Where any difficulty in giving effect to the provisions of this Act can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers such alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk or the clerk to the county council as the case may require and the overseers of the poor shall render such assistance as may be requisite for the purpose of such alteration re-arrangement or action by the town clerk or clerk to the county council as the case may be and such alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to such lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Act and may vary so far as is requisite the provisions in force with regard to such lists roll and registers.

Division into wards.

9. Subject as regards any future alteration of wards to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

(1) For the purposes of the election of councillors of the borough the wards of the borough shall be increased from five to six :

(2) The added area shall form a separate ward to be called the Orrell Ward and three additional councillors shall be assigned to that ward thereby increasing the number of councillors of the borough from thirty to thirty-three and the aldermen of the borough shall be increased from ten to eleven.

First election of councillors.

10. The first election of councillors for the Orrell Ward shall be held on the first day of November one thousand nine hundred and five and the mayor of the existing borough or such other person as he shall appoint shall be the returning officer at the election of such ward.

11. The first election of the additional alderman shall take place on the ninth day of November one thousand nine hundred and five and he shall at such first election be elected from among the persons qualified in that ward.

A.D. 1905.
First elec-
tion of
alderman.

12.—(1) The councillors elected in the year one thousand nine hundred and five for the Orrell Ward shall retire as follows :—

Retirement
of additional
councillors.

(A) The councillor who is elected by the smallest number of votes on the first day of November one thousand nine hundred and six :

(B) The councillor who is elected by the largest number of votes on the first day of November one thousand nine hundred and eight :

(C) The other councillor on the first day of November one thousand nine hundred and seven.

(2) Provided that if for any reason it is doubtful which of the councillors ought to retire on the dates specified in this section the council shall on the ninth day of November one thousand nine hundred and five or at or before the following quarterly meeting and not later by a majority of votes or in case of an equality of votes on the casting vote of the chairman determine which of the councillors shall go out of office on the dates so specified respectively.

13. In regard to the election and rotation of aldermen the following provision shall apply :—

Election and
rotation of
aldermen.

On the ninth day of November one thousand nine hundred and five being the next ordinary day for the election of aldermen the five aldermen who in the ordinary course retire on that day shall go out of office and their places shall be filled by election :

On the ninth day of November one thousand nine hundred and eight the five aldermen who in the ordinary course retire on that day shall go out of office and their places shall be filled by election :

On the ninth day of November one thousand nine hundred and eleven the additional alderman elected in pursuance of this Act shall together with the five aldermen who in the ordinary course retire on that day go out of office and their places shall be filled by the election of six aldermen :

A.D. 1905.

In lieu of the provisions of the Municipal Corporations Act 1882 (section 14 (6)) requiring one half of the whole number of the aldermen to go out of office on the ordinary day of election five shall go out of office every sixth year from the year one thousand nine hundred and eight and six every sixth year from the year one thousand nine hundred and eleven and their places shall on each occasion be filled by election.

Municipal Corporations Acts to apply to all elections &c.

14. Subject to the provisions of this Act all elections vacations of office and rotation of the aldermen and councillors shall be governed and regulated by the Municipal Corporations Acts.

Local Acts and Orders.

15. Subject to the provisions of this Act the unrepealed provisions of the local Acts and of the Confirmation Acts mentioned in the First Schedule to this Act so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule and of any other local Act or Provisional Order duly confirmed by Parliament affecting the existing borough or the Corporation as the same respectively are in force within the existing borough at the commencement of this Act shall extend and apply to the borough and any reference therein to the existing borough and the Corporation shall be deemed to refer to the borough and the Corporation thereof.

Byelaws &c.

16.—(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Act are in force in the existing borough shall thenceforth apply to the borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

(2) All byelaws and regulations made by the county council or the rural council or their predecessors and in force immediately before the commencement of this Act in any part of the added area shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the rural council before that date or shall have been sent to the surveyor or clerk to the rural council one month at least before that date and shall not have been disapproved by that council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Act shall continue to apply until the completion of such work or until the

expiration of four years from the commencement of this Act (which shall first happen) in like manner and with the like effect as if such byelaws had been made by the Corporation and as if the Corporation the borough the town clerk the borough surveyor or medical officer of health of the borough were referred to therein instead of the rural council the rural district the clerk surveyor or medical officer of health of the rural council respectively. Provided that any proceedings which might have been taken by the county council or the rural council against any person for any offence committed before the commencement of this Act against any byelaws and regulations made by the county council or the rural council or their predecessors and in force on that date in any part of the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the county council or the rural council as the case may be. A.D. 1905.

(3) For the purposes and subject to the provisions of the Education Acts 1870 to 1902 any byelaws in force in the existing borough at the commencement of this Act shall thenceforth apply to the borough until revoked or altered and from and after that date any byelaws then in force in the township of Orrell and Ford shall cease to be in force in the added area.

17.—(1) The town clerk and all other officers and servants of the Corporation of the existing borough who hold office at the commencement of this Act shall continue to be the town clerk and officers and servants of the Corporation of the borough and shall hold their offices by the same tenure as at that date. Town clerk and other officers continued.

(2) The auditors who are in office at the commencement of this Act shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors for the said purposes. Borough auditors.

18.—(1) Every officer and servant who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for such pecuniary Compensation to existing officers.

A.D. 1905. — loss and in determining such compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the borough and in the case of any other such officer or servant out of the borough fund and borough rate of the borough and the provisions of subsections (2) to (7) of the said section 120 shall apply with such modifications (including the substitution of the Local Government Board for the Treasury) as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2) For the purposes of the last preceding subsection any such officer or servant whose services are dispensed with by the Corporation because his services are not required and not on account of misconduct or whose salary is reduced on the ground that his duties have been diminished in consequence hereof in either case within five years from the commencement of this Act shall be deemed to have suffered a direct pecuniary loss in consequence of this Act.

(3) The compensation payable to the officers and persons named in the sixth clause of the Second Schedule shall be in substitution for the compensation which those persons but for that provision would be entitled to under this section.

Actions &c.
not to abate.

19.—(1) If at the commencement of this Act any action or proceeding or any cause of action or proceeding is pending or existing by or against the rural council in relation exclusively to any part of the added area the same shall not be in anywise prejudicially affected by reason of the passing of this Act but may be continued prosecuted and enforced by or against the Corporation of the borough.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Act) entered into or made by the rural council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation and may be continued and enforced as fully and effectually as if instead of the rural

council or their predecessors the Corporation had done or suffered the same or been a party thereto. A.D. 1905.

20. Subject to the provisions of this Act all property vested in the Corporation at the commencement of this Act for the benefit of the existing borough shall be held by the Corporation for the benefit of the borough and the Corporation shall hold enjoy and exercise for the benefit of the borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing borough shall from and after that date attach to them in respect of the borough. Corporation property &c.

21. Subject to the provisions of this Act—

(1) All property and liabilities which immediately before the commencement of this Act are vested in or attach to the rural council in relation exclusively to any part of the added area shall by virtue of this Act be transferred to vested in and attach to the Corporation as urban sanitary authority and any property and liabilities vested in or attached to the rural council in relation to any part of the added area conjointly with any other area shall be a matter for adjustment:

Property &c.
of rural
council.

(2) The rural council shall cease to exercise any powers or have any duties within any part of the added area:

(3) All arrears of rates made by any overseers of the poor for the purposes of the Public Health Acts or for highway expenses which at the commencement of this Act are due or owing in respect of hereditaments in the added area may be collected and recovered by the overseers of the township of Ford as if this Act had not been passed and when collected and recovered shall be applied towards the discharge of any precept of the rural council which at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation:

(4) Any balance and any other moneys in the hands of the overseers of the township of Orrell and Ford at the commencement of this Act shall be a matter for adjustment:

A.D. 1905.

(5) The Corporation and all other authorities or persons interested or any of them may agree for an equitable adjustment of all financial relations and the settlement of all questions affecting them respectively arising out of or in consequence of the extension of the existing borough or the provisions of this Act and in default of agreement the matter or matters not so agreed shall on the application of any of the bodies in difference be determined by an arbitrator to be appointed by the Local Government Board.

Mortgage
debts of
Corporation.

22. So much of any sums borrowed by the Corporation as will at the commencement of this Act be owing and charged on the district fund and general district rate of the existing borough shall be charged upon the district fund and general district rate of the borough and so much of any sums borrowed by the Corporation as will at the commencement of this Act be owing and charged upon the borough fund and borough rate of the existing borough shall be charged upon the borough fund and borough rate of the borough and all such sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Adoptive
Acts.

23. The recited adoptive Acts shall be in force in and apply to the borough as if the same had been adopted therein.

Extension of
orders of
Local
Government
Board.

24.—(1) Subject to the provisions of any order which the Local Government Board may hereafter make the provisions of the orders heretofore made by the Local Government Board and conferring upon the council of the existing borough the power of appointing overseers and of appointing and revoking the appointment of assistant overseers of the township of Bootle-cum-Linacre shall extend and apply to the appointment by the council of the borough of overseers and to the appointment and revocation of the appointment by that council of assistant overseers of the township of Orrell (comprising the added area which by this Act is constituted a separate township) but the overseers of the township of Orrell shall be elected from the ratepayers of that township.

(2) And subject as aforesaid the provisions of the said orders conferring upon the council of the existing borough the powers of the vestry of the parish of Bootle-cum-Linacre under sections 3 and 4 of the Poor Rate Assessment and Collection Act 1869 shall extend and apply to the powers of the vestry of the new township of Orrell under the said sections and to the council of the borough. A.D. 1905.

(3) And subject as aforesaid the provisions of the order of the Local Government Board dated the ninth day of June one thousand nine hundred and three conferring powers upon the council of the existing borough with respect to recreation grounds and the expenses in relation thereto shall extend and apply to the council of the borough.

25.—(1) At the commencement of this Act such members if any of the police force of the county as shall be determined by agreement to be made as soon as practicable after the passing of this Act between the standing joint committee of the county and the watch committee of the existing borough or in default of such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the borough and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Act had not been passed and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Act had not been passed. County
police.

(2) The provisions of section 15 (2) of the Police Act 1890 shall extend and apply to and in relation to any member of the police force transferred under the powers of this section as if such member had removed with the written sanction of the chief constable. 53 & 54
Vict. c. 45.

(3) All the ceunty police stations situate in any part of the added area with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of this Act be transferred to and vest in the Corporation as from the commencement of this Act for all the estate and interest therein of the county council and there shall be paid by the Corporation to the county council out of the borough fund in consideration of such transfer such sum as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

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(4) Every clerk to justices and county coroner and every officer or servant of or paid by the county council or of or paid by the standing joint committee of the county who by virtue of this Act or anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the borough fund and the provisions of subsections (2) to (7) of that section shall apply with the necessary modifications (including the substitution of the Local Government Board for the Treasury) and any such officer or servant whose services are dispensed with or whose salary shall be reduced within five years from the commencement of this Act because his services are not required or his duties are diminished in consequence hereof and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Act.

Adjustment
of financial
relations
between
county and
borough.

26.—(1) In any case where the extension of the existing borough by this Act shall affect the distribution of the proceeds of the local taxation licences of the estate duty and of the local taxation (customs and excise) duties between the county and the borough or between the county or the borough on the one hand and any other county borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to such distribution and financial relations or questions equitable adjustments may be made between the areas interested.

(2) Any such adjustment may be made by agreement between the council of the county and the councils of the county boroughs affected before the thirtieth day of September one thousand nine hundred and six and in default of such agreement by the Local Government Board or if that Board think fit by an arbitrator appointed by them.

(3) For the purposes of such adjustments the provisions of the Act of 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in

such provisions for the commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Act or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

A.D. 1905.

Provided--

(A) That in lieu of subsection (6) of section 61 of the Act of 1888 subsections (1) and (5) of section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this section and to the costs of such inquiries ; and

(B) That subsection (6) of section 32 of the Act of 1888 shall apply to any agreement or award made under this section.

27.—(1) Subject to the provisions of section 54 of the Act of 1888 the Great Crosby division of the county as diminished by the extension of the existing borough shall continue to be an electoral division of the county and the person who immediately before the commencement of this Act is the county councillor representing that electoral division shall continue to represent that division as if he had been originally elected to represent that division as hereby altered.

Electoral
divisions
and county
councillors.

(2) No county alderman or county councillor in office immediately before the commencement of this Act shall be deemed to lose his qualification by reason of the transfer of the added area to the borough by this Act.

28.—(1) The added area shall be separated from the rural district and from the township of Orrell and Ford and shall be constituted a separate parish by the name of the township of Orrell and shall be included in the West Derby Union and at the next and subsequent elections of guardians of the West Derby Union for the township of Bootle-cum-Linacre one guardian of the poor of that union shall be elected for the new township.

Alteration
of parishes.

A.D. 1905.

(2) The name of the township of Orrell and Ford as diminished by the extension of the existing borough shall be changed to the township of Ford.

(3) The person who immediately before the commencement of this Act represents the existing township of Orrell and Ford on the board of guardians of the West Derby Union and the rural council shall represent the township of Ford.

(4) At the next and subsequent elections of guardians of the West Derby Union for the township of Bootle-cum-Linacre that township shall be divided into five wards for the purposes of such elections corresponding to the five wards into which the existing borough is divided for the election of councillors and one guardian shall be elected for each ward.

(5) Any powers and duties transferred by the Act of 1894 to the parish council or parish meeting of the township of Orrell and Ford shall so far as regards the added area be vested in exerciseable by and imposed on the persons or authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added area had been included in an urban district on the appointed day within the meaning of the Act of 1894 and any property or liabilities held or incurred so far as regards the added area by virtue of or for the purposes of the said powers or duties shall pass to and vest in or attach to the persons and authorities aforesaid. Any property or liabilities of the said parish council held or incurred so far as regards the added area otherwise than by virtue or for the purposes of the said powers or duties shall be transferred to and vest in or attach to the Corporation.

(6) The parish council of the township of Orrell and Ford shall be deemed to have been elected and shall be the parish council for the township of Ford and shall cease to exercise any powers or duties within any part of the added area.

(7) No parish councillor in office immediately before the commencement of this Act shall be deemed to lose his qualification by reason of the transfer of the added area to the borough by this Act.

Ecclesiastical divisions and charities.

29. Nothing in this Act shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any of the existing parishes affected by this Act.

30. Until new valuation lists are in force the portion of the valuation list of the existing township of Orrell and Ford which relates to hereditaments in the added area shall be deemed to be the valuation list of the township of Orrell and the remaining portion of the valuation list of the existing township of Orrell and Ford shall be deemed to be the valuation list of the township of Ford.

A.D. 1905.
Valuation
lists.

31. Subject to any future revision the basis or standard of county rate for the county shall be deemed to be altered by the deduction from the amount appearing in such basis or standard as the total annual value of the property of the county of such a sum as will represent the annual value of the property in the added area.

County rate
basis.

32. For the purposes of the registers of persons entitled to vote at an election of members of Parliament of the registers of parochial electors and of jury lists the parishes affected by this Act shall be deemed to continue unaltered until the new registers and lists come into operation:

Saving for
existing lists
of parlia-
mentary
voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Act and of the holding of parish meetings in any parish affected by this Act the town clerk or the clerk to the county council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Act.

33.—(1) Every person who has acquired or who on or before the commencement of this Act shall acquire a settlement in any existing parish affected by this Act shall be deemed to have acquired a settlement in the parish comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

Settlement
and irre-
movability
of paupers.

(2) Any person who shall have acquired a status of irremovability from any existing parish affected by this Act shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Act or (if he shall then be in receipt of

A.D. 1905. — relief) from the parish comprising the area in which he was residing at the time of becoming chargeable. •

(3) For all purposes of settlement and removal residence prior to the commencement of this Act in any part of the added area shall be deemed to have been residence in the township of Orrell.

Saving for
contribution
orders and
precepts.

34. Notwithstanding the alteration effected in the areas of parishes by this Act all contribution orders made by the guardians of the poor of the West Derby Union and all precepts made by the rural council before the commencement of this Act shall be as valid in law as if this Act had not been passed.

Saving for
county rates.

35. All rates and all orders and precepts relating thereto and to matters connected therewith made by the county council before the commencement of this Act may be enforced collected and recovered as if this Act had not been passed.

Arrears of
rates.

36. All arrears of rates due or owing at the commencement of this Act in respect of hereditaments in the added area shall be collected and recovered by the overseers of the township of Ford as if this Act had not been passed.

Scheduled
terms to be
given effect
to.

37. In carrying into execution the provisions of this Act and in making any adjustment thereunder effect shall be given to the stipulations and provisions set forth in the Second Schedule to this Act.

Power to
Corporation
to grant
licences for
bridges over
streets.

38. The Corporation may grant to the owner or with the consent of the owner to the lessee or occupier of any premises abutting on any street repairable by the inhabitants at large a licence to use a way (exclusive or otherwise) for himself his servants and agents at all times with or without cattle horses carts and carriages by means of a bridge over such street for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given but not exceeding twenty-one years on such terms or at such rent and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit:

Provided that any licence given under this power shall not in any way interfere with the convenience of persons using such street or affect the rights of the owners of the property adjoining and up to the line of the street.

If any person shall construct any such bridge without such licence or shall not construct or use the same in accordance with the terms and conditions of the licence he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds. A.D. 1905.

39.—(1) The Corporation may borrow at interest for the purpose of paying the costs of this Act as herein-after provided the sum requisite for that purpose and they may with the consent of the Local Government Board from time to time borrow at interest any sum or sums of money for any of the purposes of this Act to which capital moneys are properly applicable. Power to borrow.

(2) In order to secure the repayment of moneys borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the borough fund and borough rate.

(3) The Corporation shall pay off all moneys borrowed under this section for paying the costs of this Act within five years from the passing of this Act and as to moneys borrowed with the consent of the Local Government Board within the periods sanctioned by that Board.

(4) The provisions of Article XII. Articles XIV. to XIX. and Article XXI. of the Bootle Order 1897 (scheduled to and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897) shall so far as they are applicable apply to the borrowing of money by the Corporation under this section and to the repayment thereof but such power of borrowing shall not except as aforesaid be restricted by any of the provisions of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sum which they may borrow under this Act shall not be reckoned.

40. Section 144 (As to appeal) of the Bootle Corporation Act 1890 so far as the same is applicable is hereby incorporated with and shall apply to this Act as if the same with the necessary modifications were re-enacted therein. Incorporation of provisions of Act of 1890.

41. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that Recovery of penalties.

A.D. 1905. costs or expenses except such as are recoverable along with a
— penalty shall not be recovered as penalties but may be recovered
summarily as civil debts.

Costs of Act. **42.** All costs charges and expenses preliminary to and of
and incidental to the preparing applying for obtaining and
passing of this Act as taxed by the taxing officer of the House
of Lords or of the House of Commons shall be paid by the
Corporation out of the borough fund and rate or out of moneys
to be borrowed under this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1905.

THE FIRST SCHEDULE.

ACTS AND ORDERS IN FORCE IN THE BOROUGH.

Session and Chapter of Act or Confirming Act.	Title.
36 & 37 Vict. c. xcii. -	Bootle cum-Linacre (Borough Boundary) Act 1873.
44 & 45 Vict. c. cv. -	Bootle-cum-Linacre Corporation Tramways Order 1881 confirmed by the Tramways Orders Confirmation (No. 1) Act 1881.
47 & 48 Vict. c. cxii. -	Bootle-cum-Linacre Corporation Tramways Order 1884 confirmed by the Tramways Orders Confirmation (No. 1) Act 1884.
53 & 54 Vict. c. cexix.	Bootle Corporation Act 1890.
58 & 59 Vict. c. cii. -	Bootle Corporation Electric Lighting Order 1895 confirmed by the Electric Lighting Orders Confirmation (No. 5) Act 1895.
60 & 61 Vict. c. cxlii.	Bootle Order 1897 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897.
61 Vict. c. xxxi. -	Bootle Order 1898 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1898.
62 & 63 Vict. c. ccxxxv.	Bootle Corporation Act 1899.
63 & 64 Vict. c. clxxx.	Bootle Order 1900 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1900.
63 & 64 Vict. c. excix.	Bootle Corporation Tramways Order 1900 confirmed by the Tramways Orders Confirmation (No. 2) Act 1900.

A.D. 1905.

THE SECOND SCHEDULE.

THE STIPULATIONS AND PROVISIONS HEREIN-BEFORE IN THIS ACT
REFERRED TO.

1. The liability of the added area in respect of the moneys borrowed by the rural council for highway repairs and improvements shall be an amount bearing the same proportion to the amount owing on the day of the commencement of this Act in respect of the moneys so borrowed as the assessable value of the added area shall bear to the assessable value of the entire district of the rural council on that day. The steam road-roller and its belongings and all road-making tools and machinery belonging to the rural council on that day shall remain the absolute property of the rural council.

2. Subject to the modifications herein-after mentioned the rates to be levied by the Corporation within the added area shall be the same as those levied by the Corporation from time to time within the existing borough but in fixing the amount in the pound of the rates to be levied within the added area the Corporation shall in respect of matters and things which are not provided within the added area that is to say a branch free public library and museum a public playground public baths a branch fire brigade station or separate equipment for fire extinction and improved public lighting deduct such amounts as shall be included in the Bootle rates for free public libraries and museums public recreation grounds and baths fire brigade and (to the extent of fourpence in the pound) public lighting. The amounts to be so deducted shall include both repayment of loans with interest to defray the capital cost of the said matters and things and the current annual cost of maintenance and administration thereof. Such deductions from the rates to be levied in the added area shall continue until the Corporation shall provide the said matters and things or any of them and in such event there shall be included in the rates to be levied within the added area an amount equivalent to that which shall be included in the Bootle rates for the same purposes.

3. No rates shall be levied within the added area by the Corporation prior to the termination of the next financial year of the Corporation but there shall be an adjustment between the Corporation and the rural council under which the latter shall pay or allow to the former in respect of the administration of the added area from the commencement of this Act to the end of the next financial year of the Corporation a proportionate part of the rates levied within the added area for the then current financial year.

4. The rural council shall liquidate so far as practicable before the commencement of this Act all current debts and liabilities incurred by them in respect of the added area and all arrears of rates made by the rural council within the added area and all other payments which at the

commencement of this Act are due to the rural council in respect of the added area shall be collected and recovered by the Corporation subject to adjustment between the Corporation and the rural council. A.D. 1905.

5.—(a) Owners of property within the added area shall be allowed to carry out any works which are in accordance with plans passed by the rural council before the commencement of this Act but have not at that date been commenced or completed provided such works shall be completed within four years from that date and if not so completed such plans shall to the extent of non-completion be null and void.

(b) The carriageways of streets or highways in the added area which in the opinion of the Corporation are of a residential character shall be laid with macadam and shall not be paved with setts paving-stones or boulders unless and until the character as regards traffic or otherwise of such streets or highways shall change so as to make the paving of the said carriageways desirable and where land is with the concurrence of the Corporation given up for the purpose of widening any street or highway the paving of such added width shall be completed by and at the expense of the Corporation.

6. On the commencement of this Act the Corporation shall pay to the officers and servants of the rural council as compensation for loss of office the sums following (that is to say) To Harris Peugeot Cleaver the clerk the sum of two hundred and twenty pounds to Richard Worthington Maddox the assistant clerk the sum of thirty pounds to James Charles Bradshaw the medical officer the sum of fifty pounds to James Roscoe the surveyor of highways the sum of one hundred and fifty pounds to Frederick Poole the sanitary inspector the sum of forty pounds to William Hope the clerk of the parish council of Orrell and Ford and collector of rates the sum of four hundred and sixty-five pounds and to William Ayrton the law clerk and solicitor the sum of one hundred and fifty pounds which shall include the commuted value of the proportion attributable to the added area of the yearly sum of twenty pounds payable by the rural council to him during his lifetime as compensation for the loss of the office which he formerly held as clerk of the Sefton Highway Board.

7. As from the commencement of this Act all persons who shall reside in the added area shall be entitled to the use of any of the infectious diseases hospitals belonging to the Corporation to the same extent in the same manner and with the same rights and privileges as the inhabitants of the borough and all patients residing within the added area shall whenever occasion shall arise be removed and maintained at any such hospital free of charge and the Corporation shall also give to all residents in the added area the use of their existing technical schools public libraries public baths parks and recreation grounds reading rooms fire brigades and appliances for extinguishing fires on the same terms as the burgesses of Bootle use the same.

8.—(a) The Corporation shall with all reasonable speed after the commencement of this Act apply to the Local Government Board to sanction a loan of such amount as may be necessary for the construction

A.D. 1905. of a main sewer for the effectual drainage of the added area and upon receiving such sanction shall carry such works into execution.

(b) If and when Hawthorne Road shall have been continued through the added area to Litherland and completed the Corporation shall as soon as the Corporation of Liverpool are prepared to work the tramways hereinafter mentioned proceed to promote a Bill or Order to lay electric tramways along such extended road from the existing lines in Bootle and to obtain similar facilities for traffic to those which now exist in Bootle.

(c) After the commencement of this Act the Corporation shall extend their electrical mains and supply electrical power and private lighting to customers within the added area upon the same terms and with and subject to the same rights privileges and obligations as those for the time being chargeable and existing in the borough.

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